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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

COUNCIL OF ISLAMIC IDEOLOGY

NOTIFICATION

Lahore, the 15th May, 1974

S. R. O. 594 (I)/74.—In exercise of the powers conferred by Article 231 of the Constitution of the Islamic Republic of Pakistan, and in supersession of the Government of Pakistan Notification No. S. R. O. 1265 (K)/62, dated the 29th November, 1962, the Council of Islamic Ideology, with the approval of the President, makes the following Rules for the regulation of its proceedings, namely:—

1. Short title.—These rules may be called, the Council of Islamic Ideology (Procedure) Rules, 1974.

2. Definitions.—In these rules, unless there is anything repugnant in the subject or context,—

- (i) "Article" means Article of the Constitution of the Islamic Republic of Pakistan;
- (ii) "Chairman" means the Chairman of the Council;
- (iii) "Council" means the Council of Islamic Ideology constituted under clause (1) of Article 228;
- (iv) "Director" means the Director of the Institute;
- (v) "Institute" means the Islamic Research Institute; and
- (vi) "Member" means a member of the Council and includes the Chairman.

3. Seat of Council.—The seat of the Council shall be at Islamabad or at such other place as the Chairman may, with the previous approval of the President, appoint.

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4. Proceedings of Council.—(1) Unless otherwise allowed by the Chairman, the proceedings of the Council shall be in Urdu.

(2) The proceedings of the Council shall be strictly confidential and, except as otherwise provided in these rules, shall not be made public.

5. Meetings of Council.—(1) There shall be at least one meeting of the Council during each period of three months.

(2) At least ten days' notice of a meeting of the Council shall be given by registered post to each member.

6. Conduct of proceedings, etc.—(1) Five members shall constitute quorum for a meeting of the Council.

(2) The Chairman shall preside at a meeting of the Council and, in his absence, the members present shall choose one of their number to be the Chairman for that meeting.

(3) The decision of the Council shall be expressed in terms of the opinion of the majority of the members present and voting at a meeting and, in case of equality of votes, the Chairman shall have a second vote.

7. Views of members.—The members shall, if so required by the Chairman, give their views in writing.

8. Procedure for recommendations.—(1) Where the Council proposes to make recommendation in respect of a matter referred to in paragraph (a), (c) or (d) of clause (1) of Article 230, or has to tender advice under paragraph (b) of the said clause, the Chairman may require the Institute to collect material relevant to such recommendations for submission to the Council.

(2) Where the Council has to advise a House of Parliament, a Provincial Assembly, the President or a Governor under paragraph (b) of clause (1) of Article 230 on any question referred to it under Article 229, the Chairman shall, on receipt of a reference from any of the said authorities,—

(a) fix, ordinarily in consultation with the Director, the period within which the Council is likely to render and transmit its advice to the referring authority and inform that authority of the period so fixed; and

(b) inform each member, the Director and any person whose opinion is sought under rule 10 or who is consulted under rule 11 of the period so fixed asking each such person to forward his written opinion to the Council before the expiry of that period.

(3) Each person referred to in clause (b) of sub-rule (2) shall, within the period so specified, transmit to the Council his written opinion, together with the bibliography of the material consulted by him.

(4) The Chairman shall cause to be circulated each written opinion received under sub-rule (3) with the supporting material, if any, to each person referred to in clause (b) of sub-rule (2), not being the author thereof, for his comments.

(5) The Chairman shall then convene a meeting of the Council to formulate its advice for transmission to the referring authority and may request any person consulted under rule 10 or 11 to attend the meeting.

9. **Institute's responsibility with respect to a reference made to it.**—Upon a reference being made to it under sub-rule (1) of rule 8, the Institute shall proceed to collect all relevant material and do the preliminary research and forward the material and its opinion to the Council alongwith the reasons upon which the opinion is based.

10. **Advice of experts.**—If the Chairman considers that, for formulating the Council's opinion it is desirable so to do, he may obtain the advice of any person possessing special knowledge of the subject under examination on payment of such fee as the Chairman may deem reasonable.

11. **Consultation with experts.**—Where any recommendation or question is germane to a matter of legal, economic, political, or administrative significance, the Chairman may, before the Council tenders its advice, also consult a person who by reason of his office or administrative experience is peculiarly qualified to give expert opinion on the matter under examination.

12. **Appearance of expert as witness.**—Where the Chairman considers that, for formulating the Council's recommendation or advice it is necessary so to do, he may request any person residing in Pakistan and possessing special knowledge of the subject to appear before the Council as expert witness and cause his evidence to be reduced to writing and signed by him and allow him such expenses as the Chairman may deem reasonable.

13. **Provision relating to observers.**—The Chairman may, subject to sub-rule (2) of rule 4, allow any person to sit as observer in a meeting of the Council and participate in the discussion; but such person shall not be entitled to vote.

14. **Submission of opinion and documents.**—While making recommendation under paragraph (a), (c) or (d) of clause (1) of Article 230, or while rendering advice under paragraph (b) of the said clause, the Council may forward to Parliament, a Provincial Assembly or, as the case may be, to the authority making a reference under Article 229—

- (a) the opinion rendered by the Institute;
- (b) the opinion of a person, if any, consulted under rule 10 or 11;
- (c) the testimony of an expert witness, if any; and
- (d) where any member does not agree with the opinion of the majority of the members, his note of dissent.

15. **Invitation to Law Secretary when he is not a member.**—If at any time the Secretary, Ministry of Law and Parliamentary Affairs, Government of Pakistan, is not a member of the Council, the Chairman may invite him or any other officer of the Ministry nominated by him to attend a meeting of the Council; but the person so invited shall not be entitled to vote.

MALIK HAKAM KHAN,

Secretary Council of Islamic Ideology, Lahore.

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